



Order under Subsection 87(1) Residential Tenancies Act, 2006

Citation: Fortunato v Hodgins, 2025 ONLTB 94084

Date: 2025-12-10

File Number: LTB-L-079305-25

2025 ONLTB 94084 (CanLII)

In the matter of: 4, 225 CHATHAM ST N Blenheim
ON N0P1A0

Between: Jullietta Fortunato Landlord

And

Liesa Hodgins Tenants
Kuper Hodgins

Jullietta Fortunato (the 'Landlord') applied for an order requiring Liesa Hodgins and Kuper Hodgins (the 'Tenants') to pay the rent that the Tenants owe.

This application was heard by videoconference on December 2, 2025.

The Landlord, the Tenants, and the Tenants' agent, Sarah Labadie, attended the hearing.

Determinations:

Does the Landlord have authority to continue the application

1. The property was sold in October 2025. The named Landlord ('JF') owned the property prior to the sale; they are not currently the Landlord but are referred to as such for the purposes of this order.
2. At the time the application was filed, JF was the landlord and was legally entitled to file the application. She says the agreement between herself and the purchaser was that she

retained entitlement to any arrears up to the date of sale. The arrears period covered in this application ends before the property was transferred.

3. The testimony of JF is the only, and best, evidence relating to the terms of the sale of the property and supports a finding that JF maintains authority to bring this application.

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4. As of the hearing date, the Tenants were still in possession of the rental unit.
5. The Tenants did not pay the total rent they were required to pay for the period from September 1, 2025, to September 30, 2025.
6. The lawful rent is \$1,537.50. It is due on the 1st day of each month.
7. The Tenants have not made any payments since the application was filed.
8. The rent arrears owing to September 30, 2025, are \$1,537.50.
9. The Landlord incurred costs of \$186.00 for filing the application and is entitled to reimbursement of those costs.

It is ordered that:

1. The Tenants shall pay to the Landlord (JF) \$1,723.50. This amount includes rent arrears owing up to September 30, 2025, and the cost of the application.
2. If the Tenants do not pay the Landlord the full amount owing on or before January 10, 2026, the Tenants will start to owe interest. This will be simple interest calculated from January 21, 2026, at 4.00% annually on the balance outstanding.

December 10, 2025

Date Issued

Dawn Carr

Member, Landlord and Tenant Board

15 Grosvenor Street, Ground Floor Toronto
ON M7A 2G6

If you have any questions about this order, call 416-645-8080 or toll free at 1-888-332-3234.

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